

CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
CENTRAL VALLEY REGION

ORDER NO. R5-2012-0081

RESCINDING NPDES/WDR/CEASE AND DESIST ORDERS

- a) On 15 March 2007, the Central Valley Water Board adopted Cease and Desist Order (CDO) R5-2007-0010 for the City of Lakeport Wastewater Treatment Facility (WWTF). The WWTF is owned and operated by the City of Lakeport Municipal Sewer District (Discharger). The CDO required the Discharger to address the following compliance issues: (a) wastewater spills to surface waters, and (b) inadequate wastewater storage and disposal capacity at WWTF.

The Order required the Discharger to complete several tasks to address the compliance issues. The Discharger has achieved compliance by completing the tasks in the CDO. Therefore, Cease and Desist Order R5-2007-0010 is no longer necessary.
- b) Waste Discharge Requirements Order R5-2009-0009 (NPDES Permit No. CA0079987), adopted 5 February 2009 by the Regional Water Quality Control Board, Central Valley Region (Central Valley Water Board), allows discharge of treated wastewater from the Maxwell Public Utility District to an unnamed tributary of Lurline Creek, a tributary to the Colusa Basin Drain. On 8 October 2009 the Central Valley Water Board adopted Waste Discharge Requirements Order R5-2009-0109 for discharge to land upon construction of a new effluent storage pond. Cease and Desist Order (CDO) R5-2011-0040 was also adopted to extend compliance schedules in the NPDES Permit to 31 January 2012 when the effluent storage ponds construction was projected complete. The Discharger constructed the land disposal area. On 2 December 2011 the Discharger ceased surface water discharges and on 26 January 2012 began discharging treated wastewater to land. Consequently, Orders R5-2009-0009 and R5-2011-0040 (NPDES Permit and CDO) are no longer necessary and are rescinded.
- c) The Sierra Pacific Industries owns and operates the Camino Lumber Mill site (Facility), which is regulated by Waste Discharge Requirements Order R5-20050008 (NPDES No. CA0078841) to discharge collected stormwater to an unnamed tributary to North Canyon Creek, a tributary to the South Fork of the American River. In the summer of 2009, the Discharger ceased sawmill operations and began to dismantle the Facility. By a letter dated 9 March 2012, the Discharger informed the Central Valley Water Board that the Camino Lumber Mill is closed and approximately three-quarters dismantled. In May 2012, the Discharger submitted a pond closure work plan to the Central Valley Water Board. During summer 2012, Central Valley Water Board staff worked closely with the Discharger as it satisfactorily proceeded with the closure of the ponds. The Facility no longer has a surface water discharge and the Discharger requested the rescission of its NPDES Permit.
- d) Waste Discharge Requirements Order R5-2004-0120 (NPDES No. CA0080055), adopted 10 September 2004, prescribes requirements for the discharge from the Merced River Fish Hatchery (Facility). The Facility is on property owned by the Merced Irrigation District and is operated by the State of California Department of Fish and Game. The Facility discharges to the Merced River, a water of the United States, in Section 7, T5S, R15E, MDB&M, Merced County. On 29 March 2012, the Department of Fish and Game and the Merced Irrigation District submitted a Notice of Intent and applied for coverage under the General Waste Discharge Requirements for Cold Water Concentrated Aquatic Animal Production Facility Discharges (General Order R5-2010-0018-01, NPDES No. CAG135001). Based on the information in the Notice of Intent and supplemental information, the discharge meets the required conditions for coverage under the General Order and a Notice of Applicability was issued by the Executive Officer on 4 June 2012. Consequently, Order R5-2004-0120 is no longer necessary. (ASM)

- e) Waste Discharge Requirements Order 80-013, adopted on 25 January 1980, prescribes requirements for the discharge of septic waste to 60 acres of land located in Henning Flat in section 6 of Township 26 South, Range 34 East, MDB&M in Kern County. The Discharger ceased discharging septic waste in 2000 and the site is closed. Therefore, it is appropriate to rescind Waste Discharge Requirements Order 80-013. (DMS)

A public hearing was held and no one was present to contest these orders.

IT IS HEREBY ORDERED that the above NPDES, WDR and Cease and Desist orders are rescinded.

I, PAMELA C. CREEDON, Executive Officer, do hereby certify the foregoing is a full, true, and correct copy of an Order adopted by the California Regional Water Quality Control Board, Central Valley Region on August 3, 2012.

A handwritten signature in cursive script, reading "Pamela Creedon", is written over a horizontal line.

PAMELA C. CREEDON, Executive Officer